



ABORIGINAL **INVESTMENT**

Community Impact and Innovation Grant Agreement

Aboriginal Investment NT ABN 61 234 978 285
Aboriginal Investment NT

URAPUNTJA HEALTH SERVICE ABORIGINAL CORPORATION ABN
45449518275
Grantee

Our Ref: C050

Community Impact and Innovation Grant Agreement

This Agreement is dated the date it is executed by the last party to do so

Parties

Aboriginal Investment NT ABN 61 234 978 285 of 60 Smith Street, Darwin NT 0870 (**Aboriginal Investment NT**)

and

The person or entity named in Item 1 (Grantee)

Recitals

- A. The Grantee submitted the Grant Application, seeking financial assistance from Aboriginal Investment NT to undertake the Project.
- B. Aboriginal Investment NT has agreed to enter into this Agreement to provide the Grantee with the Grant to assist:
 - (a) the Grantee to undertake the Project; and
 - (b) meet the Objectives.
- C. The Grantee agrees to apply the Grant towards the Project in accordance with this Agreement.

Reference Schedule

Item	Description	
1. Grantee	URAPUNTJA HEALTH SERVICE ABORIGINAL CORPORATION ABN 45449518275	
2. Project	Project title	Urapuntja Mobile Clinic.
	Project description	During the Term, the Grantee will use the Grant to The Urapuntja Mobile Clinic Project will establish a permanent, on-country healthcare service, providing culturally safe, accessible care to Aboriginal people across 16 remote homelands. Building on the success of the leased mobile clinic, this initiative ensures long-term healthcare access, early disease detection, and improved chronic disease management. Delivering chronic disease care, maternal and child health, immunisations, emergency response, and prevention programs, the clinic will operate on a structured rotation, reducing travel barriers. Integrating Both-Ways governance, it aligns Western medicine with traditional healing. Funding supports clinic purchase, medical fit-out, and first-year operations, benefiting 1,000+ community members and ensuring sustainable, community-led healthcare. and doing so: (a) achieve the Deliverables during each Project Period; and (b) use its best endeavours to meet each of the targets in the Grant Outcomes at Schedule 4.

3. Grant	\$331,755.00 (ex GST)
4. End Date	30/09/2026

5. Project Site(s)

Amengerterneah Int Sandover NT 0872 Australia

6. Payment of Grant direct to vendor	No <i>If marked "Yes" then clause 4.2 applies</i>
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7. Personal Property Securities Law

Asset	Expiry
Mercedes Benz Sprinter LWB extra high roof 4WD	5 years after the End Date

8. Insurance

The Grantee must insure against all risks connected with its delivery of the Project and at a minimum hold and maintain the insurance policies marked with an "X", during the Term in respect of the Project:	
Public liability insurance - \$20 million per insurable claim	Yes
Motor vehicle insurance - Comprehensive insurance	Yes

9. Other Contributions

Name	Contribution type	Contribution Amount	Timing of contribution
Urapuntja Health Service Aboriginal Corporation	In kind	\$100,000.00	Year 1

10. Address for service of notices		Aboriginal Investment NT	Grantee
	Contact name	General Manager Grants	Melissa Hinson
	Street address	60 Smith Street Darwin NT 0800	Amengerterneah Int Sandover NT 0872 Australia
	Email	grants@aboriginalinvestment.org.au	ceo@urapuntja.org.au
11. Bank Account	Account name	Urapuntja Health Service Aboriginal Corporation	

	BSB	035303
	Account number	486175
12. Special Conditions	None	

Schedule 1 – Project Budget

Item	Amount Funded by Aboriginal Investment NT (ex. GST)	Amount Co- Contributed	GST Amount	Total (inc GST)
Mercedes Benz Sprinter LWB extra high roof 4WD	\$127,000.00		\$12,700.00	\$139,700.00
Mercedes Bens Sprinter Clinic Fit-out	\$176,255.00		\$17,625.50	\$193,880.50
Graphic Design of vehicle wrap	\$7,500.00		\$750.00	\$8,250.00
Vehicle Wrap	\$12,000.00		\$1,200.00	\$13,200.00
Operational Costs covered by Urapuntja Health Service	\$0.00	\$100,000.00	\$10,000.00	\$110,000.00
Vehicle Delivery	\$9,000.00		\$900.00	\$9,900.00
Project Total	\$331,755.00	\$100,000.00	\$33,175.50	\$474,930.50
Co-Contribution Total		\$100,000.00	\$10,000.00	\$110,000.00
Aboriginal Investment NT Total	\$331,755.00		\$33,175.50	\$364,930.50

Schedule 2 - Payment Schedule

Payment number	Due Date	Deliverables	Grant payable (ex GST)	Payment Trigger
1	30/09/2025	- Review and approval of Pre-Funding Agreement - Upon execution of funding agreement, grant payment is processed	\$331,755.00	Grant Agreement is signed and returned
2	29/01/2027	- Final Acquittal Report is completed and returned - Reviewed and acquitted by Aboriginal Investment NT	\$0.00	- Final Acquittal Report is completed and returned - Reviewed and acquitted by Aboriginal Investment NT - Funded project is complete

Schedule 3– Report Schedule

Required Reports marked with an 'Yes' are required	Report	Certified by	Reporting period	Due date (Report due within 30 days of the specified due date, except for the Regular Check-in, Annual Site visit and Audit, which are due on the date specified – clause 13.2(a))
Yes	Regular Check-ins The Grantee will constructively engage with Aboriginal Investment NT during regular check-ins on the Project. The check-in may include providing updates to Aboriginal Investment NT on Project progress, highlights and any concerns with Project delivery, notifying Aboriginal Investment NT of any information or circumstances which may affect the Grantee performing the Project or complying with this Agreement and answering any questions Aboriginal Investment NT may have in relation to the Grantee's use of the Grant and delivery of the Project	The Grantee or an authorised person of the Grantee	For the period from the Commencement Date up to the date of the Check-In	At the following minimum intervals during the Term Bi-Annually <i>Aboriginal Investment NT will initiate the Regular Check-Ins</i>
No	Progress Report The Grantee must submit a Progress Report through SmartyGrants on: - its expenditure of the Grant over the Term to date against the Project Budget - its performance and delivery of the Project, including photographic, written and other evidence of achieving Deliverables and Grant Outcomes as appropriate, or requested by Aboriginal Investment NT - any issues or other impediments to its performance and delivery of the Project	The Grantee or an authorised person of the Grantee	The period between the Commencement Date and the first due date Then, each six-month period following the first due date thereafter, except if a Final Acquittal Report or Evaluation Report is also due at the same time	On and then every twelve months following that date, during the Term
Yes	Annual Site Visit The Grantee will permit Aboriginal Investment NT to visit the Project Site at least annually during the Term and allow Aboriginal Investment NT to inspect Project delivery and		For the period from the Commencement Date up to the date of the Annual Site Visit	Once every 12 months during the Term

	progress and speak with the Grantee's officers and staff about the Project and the Grant			<i>Aboriginal Investment NT will initiate the Annual Site Visit</i>
Yes	Final Acquittal Report The Grantee must submit a Final Acquittal Report through SmartyGrants includes: • an acquittal of total expenditure of the Grant against the Project Budget during the Term • a copy of the Grantee's Asset register, maintained under clause 8(b) • a service and maintenance schedule or plan detailing how the Grantee will ensure the longevity of all Assets • a description of the progress made in achieving the Deliverables (1 -2 pages, including photographs or other evidence, as appropriate) • progress made in achieving the Grant Outcomes (1 -2 pages, including photographs or other evidence demonstrating how Grant Outcomes targets have been met) • a narrative report on the outcomes of the Agreement and how the Grant has supported the Grantee to undertake the Project and achieve the Grant Outcomes	The Grantee or an authorised person of the Grantee	The period between the Commencement Date and the due date of the Final Acquittal Report	End Date 29/01/2027
No	Evaluation Report The Grantee must provide a detailed written evaluation report on the progress made in achieving the Grant Outcomes.	The Grantee or an authorised person of the Grantee	The period between the Commencement Date and the due date of each Evaluation Report	End Date
No	Audit Independently audited financial acquittal report in relation to the Grantee's receipt and expenditure of the Grant and Other Contributions, for the period from the Commencement Date to the due date for the report	Auditor	The period between the Commencement Date and the due date of each Audit	Within 2 months of the End Date

Schedule 4 – Grant Outcomes

Grant Outcomes	Measures
1. Improved health outcomes for Aboriginal people in Urapuntja Homelands	1.1 Community feedback 1.2 Relevant data from clinical outcomes, governance reporting, patient data
2. Improved health care and culturally safe service delivery for Aboriginal people in Urapuntja Homelands	2.1 Community feedback 2.2 Relevant data from clinical outcomes, governance reporting, patient data

Execution

Executed by the parties as an agreement

Executed for and on behalf of
Aboriginal Investment NT
ABN: 61 234 978 285



Signature of Chief Executive Officer

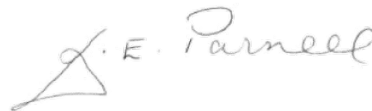
Nigel Brown

Name

6/11/2025

Date

In the presence of



Signature of witness

Judith Parnell

Name

6/11/2025

Date

Executed by

**URAPUNTJA HEALTH SERVICE
ABORIGINAL CORPORATION Pty Ltd
ACN 45449518275:**

Esau Nelson

Signature of Director/Owner

Esau Nelson

Name of Director

14th October 2025

Date

Affix Common Seal Here (if applicable)

Edward Jones

Signature of Director/Secretary

Edward Jones

Name of Director/Secretary

14th October 2025

Date

Terms and Conditions

The parties agree:

2. Definitions and interpretation

2.1. Definitions

In this Agreement, unless the context otherwise requires, the following terms have the following meanings:

Agreement means this grant agreement and includes the party information and recitals, Reference Schedule, Execution, Terms and Conditions and all other schedules and annexures to this Agreement.

Asset means any item of property purchased wholly or in part, using the Grant.

Australian Privacy Principle has the meaning given in the *Privacy Act 1988* (Cth).

Bank Account means the Grantee's bank account details in Item 11.

Business Day means a day that is not a Saturday, Sunday or public holiday in Darwin in the Northern Territory of Australia.

Change in Control occurs when a person or entity who:

- (a) did not have Control of the Grantee at the time the Grant Application was submitted, acquires control of the Grantee; or
- (b) did have Control of the Grantee at the time the Grant Application was submitted, ceases to have Control of the Grantee.

Commencement Date means the date on which this Agreement is executed by the last party to do so.

Common Grant Guidelines means Aboriginal Investment NT's *Grants Program Guidelines*, as amended from time to time.

Confidential Information means any information or material relating to this Agreement provided by or for one party to the other party that is by its nature confidential, marked as confidential or which the recipient knows is confidential.

Conflict means any matter, circumstances, interest or activity affecting the Grantee or an officer, member, employee or agent of the Grantee which may or may appear to impair the ability of any of the Grantee or those persons to carry out the Grantee's responsibilities under this Agreement, diligently and responsibly.

Control has the meaning given in the *Corporations Act 2001* (Cth).

Deliverables means the outcomes or results the Grantee must realise or achieve from the Project during each Project Period and set out in the Payment Schedule.

End Date means the date specified in Item 4.

Existing Material means Material developed independently of this Agreement that is incorporated in or supplied as part of the Reporting Material or Project Material.

Execution means the execution page(s) to this Agreement.

Fraud means dishonestly obtaining benefit or causing a loss by deception or other means and includes alleged, suspected or attempted fraud.

Grant Application means the grant application submitted by the Grantee to Aboriginal Investment NT in connection with the Project and the Grant.

Grant means the grant paid by Aboriginal Investment NT under this Agreement, specified in Item 3.

Grant Outcomes means the outcomes set out at Schedule 4, against which the Grantee's performance of the Project will be monitored and evaluated.

GST means tax imposed on a supply under *A New Tax System (Goods and Services) Act 1999* (Cth).

Item means an item in the Reference Schedule.

Material includes documents, equipment, software (including source code), goods, information and data stored by any means and all copies and extracts of those materials.

Media Consent form is the form seeking the Grantee's permission to use the Grantee's name, story and images (photographs, video and/or audio recordings) for marking and promotional purposes, in a way that honours the Grantee's achievements and cultural values. The Media Consent form forms part of the Grant Agreement.

Notice to Remedy means a notice issued by Aboriginal Investment NT under clause 22.1, requiring the Grantee to remedy a default under the Agreement and giving not less than 10 Business Days to do so.

Objectives means the objectives Aboriginal Investment NT seeks to promote through the Community Impact and Innovation Grant program, being to support projects that:

- (a) seek to achieve a cultural, social and/or economic impact; and/or
- (c) demonstrate an innovative solution,

for the benefit of Aboriginal community members in the Northern Territory.

Other Contributions means contributions towards the Project set out in Item 9, which the Grantee will procure from third parties.

Payment Schedule means the payment schedule at Schedule 2.

Payment Triggers means each of the payment triggers specified in the Payment Schedule, which Grant payments are subject to.

Personal Information has the meaning given to that term in the *Privacy Act 1988* (Cth).

Personal Property Securities Law means the *Personal Property Securities Act 2009* (Cth) and any regulations made under it.

PPSA Security Interest means a security interest within the meaning of the Personal Property Securities Law.

Project means the project which the Grantee agrees to undertake and deliver using the Grant, set out in Item 2 and includes the Deliverables.

Project Budget means the Project budget at Schedule 1.

Project Material means any Material, other than Reporting Material, created or developed by the Grantee in connection with the Project and includes any Existing Material in that Project Material.

Project Period means an individual period of time during the Term or other Project milestone, specified in the Payment Schedule.

Project Site means the site or premises on which the Project is to be delivered, including that specified at Item 5.

Reference Schedule means the reference schedule beginning at page 2 of this Agreement.

Reporting Material means all Material the Grantee is required to provide to Aboriginal Investment NT under this Agreement and includes any Existing Material in that Reporting Material.

Special Conditions means the special conditions (if any) specified at Item 12.

Specific Grant Guidelines means the Aboriginal Investment NT guidelines that apply to the specific grant stream the subject of the Grant Application, as amended from time to time.

Term means the term of this Agreement, being the period on and from the Commencement Date until the later of:

- (a) the End Date; and
- (d) the date on which the Grantee has completed each of its obligations under this Agreement.

Terms and Conditions means these terms and conditions.

2.2. Interpretation

In this Agreement:

- (a) headings are for convenience only and do not affect interpretation;
- (b) references to a clause, recital, subclause, annexure or schedule are to a clause, recital, subclause, annexure or schedule to this Agreement;
- (c) a reference to legislation means a reference to that legislation and its subordinate legislation as updated and amended from time to time and where appropriate, any replacing legislation;
- (d) words importing the singular include the plural and vice versa;
- (e) the word 'including' is not a word of limitation;
- (f) where a word or phrase is defined in this Agreement, other parts of speech and grammatical forms of that word or phrase have a corresponding meaning;
- (g) a reference to a person includes any company, partnership, government agency or other incorporated or unincorporated group;
- (h) a covenant or agreement on the part of two or more persons binds them jointly and severally;
- (i) a reference to a party includes that party's successors and permitted assigns; and
- (j) no provision of this Agreement will be construed adversely to a party solely on the ground that the

party was responsible for the preparation of this Agreement.

3. Term

This Agreement commences on the Commencement Date and continues for the Term.

4. Project

4.1. Performing the Project

During the Term, the Grantee must:

- (a) perform and undertake the Project in accordance with this Agreement and otherwise in a way that maximises:
 - (ii) the employment of Aboriginal people living in the Northern Territory; and
 - (ii) the use of goods and services provided by businesses owned or control by Aboriginal people living in the Northern Territory;
- (b) comply with the Special Conditions;
- (c) achieve the Deliverables required in each Project Period;
- (d) use its best endeavours to meet each of the Grant Outcomes targets set out in Schedule 4; and
- (e) complete the Deliverables by the End Date (or such earlier date required by Schedule 2), to the reasonable satisfaction of Aboriginal Investment NT.

4.2. Requirements for performing Project

During the Term, the Grantee must undertake the Project:

- (a) consistently with the Grant Application;
- (b) safely, diligently and in a proper and reputable manner;
- (c) at the standard and with the level of care, skill, knowledge and judgment required or reasonably expected of a person in a similar profession, trade, occupation or business carrying out activities the same or similar to the Project; and
- (d) in accordance with all applicable laws.

5. Payment of Grant

5.1. Payment of Grant to Grantee

- (a) Upon the Grantee rendering a correct tax invoice, Aboriginal Investment NT will pay the Grant to the Grantee into the Bank Account, in the amounts and at the times specified in the Payment Schedule, subject to the Payment Triggers and the Agreement generally.
- (b) The Grantee agrees that Aboriginal Investment NT may issue a recipient created tax invoice for any taxable supply the Grantee makes in relation to the Project, in which case the Grantee will not issue a tax invoice for the relevant supply.
- (c) The Grantee must hold the Grant in the Bank Account, which must be an account in its sole name established with an authorised deposit taking institution.

5.2. Payment of Grant direct to vendor

- (a) Despite clause 4.1(a), if Item 6 is marked "Yes", then Aboriginal Investment NT may elect to pay a vendor directly for any Asset, item or services valued at \$5,000 or more, which the Grantee seeks to purchase using the Grant.
- (b) If Aboriginal Investment NT makes an election under clause 4.2(a), then it will make the payment direct to the vendor following receipt of the following in relation to the relevant Asset, item or services:
 - (i) a satisfactory tax invoice from the Grantee that includes an instruction to pay the vendor directly; and
 - (ii) a copy of the vendor's tax invoice to the Grantee.

5.3. Aboriginal Investment NT may withhold payment of Grant

- (a) Aboriginal Investment NT may by notice, withhold payment of any part of the Grant where it reasonably believes that the Grantee has not complied with this Agreement or is unable to undertake the Project.
- (b) A notice under clause 4.3(a) will contain the reasons for any payment being withheld and steps the Grantee can take to address those reasons.
- (c) Aboriginal Investment NT will pay the withheld amount once the Grantee has, to the satisfaction of Aboriginal Investment NT, addressed the reasons set out in the notice under clause 4.3(a).

6. Application of Grant

- (a) The Grantee must apply the Grant solely:
 - (i) in accordance with the Project Budget; and
 - (ii) for the purpose of performing the Project.
- (b) Despite clause 5(a) the Grantee must not apply any part of the Grant towards any item or purpose that is specified as ineligible in the Common Grant Guidelines or the Specific Grant Guidelines or is otherwise notified by Aboriginal Investment NT as ineligible.
- (c) If at the End Date, any part of the Grant remains unspent, then the Grantee must immediately notify Aboriginal Investment NT of the amount of the underspent.

7. Repayment of Grant

- (a) If:
 - (i) the Grantee spends the Grant otherwise than in accordance with this Agreement;
 - (ii) the Grantee cannot acquit its expenditure of any part of the Grant to the reasonable satisfaction of Aboriginal Investment; or
 - (ii) any part of the Grant remains unspent at the End Date,then the Grantee must immediately repay to Aboriginal Investment NT an amount equivalent to the misspent, unacquitted or underspent part(s) of the Grant, without set-off, counterclaim or deduction.

- (b) Aboriginal Investment NT may deduct any amount repayable under clause 6(a) from any current or subsequent payments due under this Agreement or any other current or future agreement or arrangement between Aboriginal Investment NT and the Grantee.

8. Grantee's general obligations

In performing the Project, the Grantee must:

- (a) hold and maintain all certificates, licences, consents, permits, approvals and authorisations required by any government or authority to implement the Project;
- (b) hold and maintain lawful consent to undertake the Project on the Project Site and provide written evidence of that consent to Aboriginal Investment NT on request;
- (c) pay no more than market value to purchase Assets, items and services to undertake the Project;
- (d) avoid unnecessary nuisance and disturbance;
- (e) immediately notify Aboriginal Investment NT of any information or circumstances of which the Grantee becomes aware that may affect the Grantee in performing the Project or complying with this Agreement;
- (f) on request, meet with and provide updates to Aboriginal Investment NT on the delivery of the Project and participate in any of Aboriginal Investment NT's community and stakeholder and engagement activities relevant to the Grant;
- (g) permit Aboriginal Investment NT and its employees and agents to visit the Project Site and otherwise inspect the performance of the Project; and
- (h) comply with all reasonable rules, demands, decisions and directions of Aboriginal Investment NT in relation to the implementation of the Project.

9. Assets

- (a) Unless the Asset is listed in the Project Budget, the Grantee must not use any part of the Grant to purchase an Asset or services valued over \$5,000 (inc GST), unless it has first obtained the written consent of Aboriginal Investment NT.
- (b) The Grantee must maintain a register setting out all Assets valued over \$5,000 (inc GST) purchased using any part of the Grant, including the date of purchase, purchase price, vendor and description of the Asset (including VIN or other registration or serial number identifying the Asset) and provide Aboriginal Investment NT with a copy of the register, on request.
- (c) The Grantee must use the Assets for the purpose of the Project only.
- (d) The proceeds of any Assets purchased with the Grant and disposed of during the Term must be treated as part of the Grant and used solely for the purposes of the Project.

10. Other Contributions

- (a) The Grantee will procure the Other Contributions in accordance with Item 9 and ensure:

- (ii) any terms and conditions on which the Other Contributions are procured are not inconsistent with the rights and obligations of each party under this Agreement;
 - (ii) the Other Contributions are applied solely towards the delivery of the Project; and
 - (ii) on Aboriginal Investment NT's request, evidence is provided that the Other Contributions have been paid or provided and the terms and conditions on which they have been paid or provided.
- (b) If the Other Contributions are not procured or used in accordance with this clause 9, then Aboriginal Investment NT may:
- (ii) suspend payment of the Grant until the Other Contributions are procured; or
 - (ii) terminate this Agreement under clause 22.4.

11. Personal Property Securities Law

- (a) In relation to each Asset specified in Item 7, the Grantee:
- (ii) grants to and acknowledges that Aboriginal Investment NT has a PPSA Security Interest over that Asset for a period of the Term plus the number of years specified under "Expiry" in Item 7; and
 - (ii) will take all steps necessary, including execution of documents, to perfect Aboriginal Investment NT's interest in that Asset.
- (b) If the Grantee is in default under this Agreement, then:
- (ii) Aboriginal Investment NT may exercise all rights and remedies available to it under the Personal Property Securities Law, including taking possession or, selling or disposing of the Asset over which Aboriginal Investment NT has a PPSA Security Interest; and
 - (ii) the Grantee waives its right to receive any notice under the Personal Property Securities Law, unless it cannot be excluded.

12. Insurance

The Grantee must:

- (a) hold and maintain in its name during the Term, the following insurance policies in respect of the Project:
- (ii) the insurances marked with an "X" in Item 8 for not less than the amounts or levels specified in that Item; and
 - (ii) all insurances otherwise required by law in connection with the delivery of the Project;
- (b) not do or omit or permit to be done anything that renders the insurance policies under clause 11(a) to be void or voidable; and
- (c) on request, provide Aboriginal Investment NT with copies of its certificates of insurance for the policies required under this Agreement.

13. Indemnity, risk and release

- (a) The Grantee accepts all risks in respect of the Project, including the following:
- (ii) the actual cost of performing and completing the Project; and
 - (ii) all liabilities associated with performing and completing the Project, including employee liabilities, taxes, loss of or damage to any property, injury or death to any person or any other loss, cost or liability howsoever incurred.
- (b) The Grantee releases Aboriginal Investment NT, its officers, employees and contractors (**the indemnified**) from, and indemnifies the indemnified against, any claim, loss, damage or liability any of the indemnified may suffer or incur, arising directly or indirectly in connection with:
- (ii) the risks in clause 12(a);
 - (ii) the Grantee's performing and completion of the Project; and
 - (ii) any breach of or non-compliance with the law or this Agreement, by the Grantee.
- (c) The Grantee's liability under clause 12(b) is reduced proportionally to the extent any act or omission involving fault on the part of Aboriginal Investment NT contributed to the claim, loss or damage.

14. Record keeping and reporting

14.1. Record keeping

- (a) During the Term and for a period of five years afterwards (**Record Period**), the Grantee must maintain comprehensive written records of its performance and delivery of the Project and its expenditure of the Grant.
- (b) Without limitation, the records kept under clause 13.1(a) must:
- (ii) ensure receipt and expenditure of the Grant and Other Contributions can be identified separately from the Grantee's other funds;
 - (ii) itemise all expenditure on the Project;
 - (ii) enable the preparation of income and expenditure statements and financial records in accordance with generally accepted accounting standards; and
 - (ii) detail the Grantee's performance of the Project, including photographs or other visual records of performance and completion.
- (c) At any time during the Record Period and in respect of the records required to be kept under clause 13.1, the Grantee must on Aboriginal Investment NT's request:
- (ii) permit Aboriginal Investment NT to inspect, copy and audit the records;
 - (ii) provide a copy of those records to Aboriginal Investment NT; and
 - (ii) cooperate with and provide all reasonable assistance to Aboriginal Investment NT in

relation to a request made under this clause.

14.2. Reporting

- (a) The Grantee must provide the reports marked in the Report Schedule with an "X" as being required:
 - (ii) within 30 days of each due date (except for the Regular Check-In, Annual Site visit and Audit which are due on the date specified); and
 - (ii) in the formats and for the reporting periods, specified in the Report Schedule.
- (b) The Grantee must provide such other reasonable reports in relation to the Project and its expenditure of the Grant, as requested by Aboriginal Investment during the Term.
- (c) A report submitted under this Agreement must be to the satisfaction of Aboriginal Investment NT.

15. Audit and access

- (a) After giving 2 Business Days' notice, Aboriginal Investment NT may (itself or through a third party) conduct an audit or performance review of the Grantee's compliance with this Agreement and its delivery of the Project generally.
- (b) The Grantee must cooperate fully with any request of Aboriginal Investment NT made under clause 14(a), including providing access to the Project Site, its business premises (if different to the Project Site), records and employees.

16. Publicity, acknowledgement and reputation

- (ii) The Grantee must:
 - (ii) prominently acknowledge Aboriginal Investment NT's contribution and support (using Aboriginal Investment NT's logo if provided by Aboriginal Investment NT) in all publications (including but not limited to printed or digital publications), websites, media, social media, and any other public announcements or statements it publishes or causes to be published in connection with the Project; and
 - (ii) comply with all directions of Aboriginal Investment NT in relation to those publications and other public announcements or statements, including in relation to wording and use of images or logos.
- (b) Aboriginal Investment NT may permit or require the Grantee to use its logo in connection with any publication under clause 15(a) according to any conditions it may from time to time determine.
- (c) The Grantee will not do, nor cause to be done, anything that harms or otherwise compromises or damages the reputation of Aboriginal Investment NT.

17. Intellectual property and Materials

- (a) This Agreement does not affect the ownership of intellectual property rights in Existing Material.

- (b) The Grantee agrees to provide a copy of the Project Material to Aboriginal Investment NT on its request.
- (c) The Grantee gives Aboriginal Investment NT a non-exclusive, irrevocable, worldwide and royalty-free licence to use, reproduce, publish, communicate and adapt the Reporting Material for any purpose.
- (d) The Grantee warrants that in respect of the Project Material and the Reporting Material:
 - (ii) it owns the Material;
 - (ii) its provision and use in accordance with this Agreement will not infringe any third party's intellectual property rights; and
 - (ii) it has complied with relevant cultural protocols and obtained appropriate consent to use any Indigenous cultural intellectual property contained in the Material.

18. Publication of Grant information

The Grantee agrees to Aboriginal Investment NT publishing online, in its annual report and in any other publication, details of the Grant, the Grantee, the Project and any other information reasonably necessary to promote the Objectives and meet Aboriginal Investment NT's legal and other obligations.

In addition, the Grantee must complete and sign the Media Consent form at Appendix A. Aboriginal Investment NT will not share the Grantee's details for marketing and promotional purposes without the Grantee's consent. The Media Consent form forms part of the Grant Agreement.

19. Confidentiality and privacy

19.1. Confidentiality

- (a) Each party must hold all Confidential Information of the other party in confidence and must not make any use of it except to perform obligations or exercise rights under this Agreement.
- (b) Neither party may disclose or permit to be disclosed the Confidential Information of the other party to any person except:
 - (ii) as authorised under this Agreement;
 - (ii) to its officers, employees and contractors, to the extent necessary to perform its obligations under this Agreement;
 - (ii) where it is required to be disclosed by law; and
 - (ii) as may be required by the Parliament of the Commonwealth or the Parliament of any State or Territory.

19.2. Privacy

When dealing with Personal Information in the performance of this Agreement and the Project, the Grantee must not do anything which, if done by Aboriginal Investment NT, would be a breach of an Australian Privacy Principle.

20. Conflicts of interest

- (a) The Grantee:

- (ii) warrants that at the date of signing this Agreement and to the best of its knowledge, no Conflict exists or is likely to arise in connection with its performance of its obligations under this Agreement; and
- (ii) agrees to immediately notify Aboriginal Investment NT of any actual, perceived or potential Conflicts that arise during the Term.
- (b) At any time during the Term, Aboriginal Investment NT may notify the Grantee if it reasonably believes an actual, perceived or potential Conflict has arisen.
- (c) If an actual, perceived or potential Conflict is notified under this clause 19 and the parties are unable, in good faith, to negotiate a resolution within 15 Business Days of the date of the notification, then Aboriginal Investment NT may take further action under clause 22.

21. Fraud

- (a) The Grantee must ensure that its personnel and subcontractors do not engage in any Fraud in relation to the Project and must immediately notify Aboriginal Investment NT of any Fraud or suspected Fraud arising in connection with the Project.
- (b) Aboriginal Investment NT may investigate any Fraud or suspected Fraud in relation to the Project and the Grantee agrees to provide all reasonable assistance with that investigation.

22. Dispute resolution

- (a) Aboriginal Investment NT and the Grantee agree not to initiate legal proceedings in relation to a dispute under this Agreement unless they have first tried and failed to resolve it through good faith negotiation.
- (b) When a dispute exists, Aboriginal Investment NT and the Grantee must continue to perform their respective obligations under this Agreement, unless they otherwise agree.
- (c) Failing settlement by negotiation under clause 21(a), Aboriginal Investment NT and the Grantee may agree to refer the dispute to an independent third person with power to intervene and direct some form of resolution, in which case the parties will be bound by that resolution.
- (d) Aboriginal Investment NT and the Grantee will bear their own costs in complying with this clause 21 and they will share equally the costs of any third person engaged under clause 21(c).
- (e) This clause does not apply to any action relating to termination, reduction, cancellation or suspension of this Agreement, or to any party seeking urgent interlocutory relief.

23. Default, reduction, suspension and termination

23.1. Notice to Remedy

If the Grantee does not comply with or perform an obligation or requirement under this Agreement, then Aboriginal Investment NT may issue it with a Notice to Remedy.

23.2. Reduction in scope

- (a) Aboriginal Investment NT may reduce the scope of the Agreement by written notice if the Grantee does not comply with or perform an obligation or requirement under this Agreement and:
 - (ii) Aboriginal Investment NT believes the non-compliance is incapable of remedy; or
 - (ii) the Grantee has failed to comply with a Notice to Remedy.
- (b) On receipt of a notice of reduction issued under clause 22.2(a), the Grantee agrees to:
 - (ii) stop or reduce the performance of the Grantee's obligations as specified in the notice;
 - (ii) take all available steps to minimise loss resulting from the reduction;
 - (ii) continue to perform any part of the Agreement not affected by the notice; and
 - (ii) report on and deal with the Grant as directed by Aboriginal Investment NT.
- (c) At Aboriginal Investment NT's discretion, a reduction in scope under clause 22.2(a) will also reduce the amount of the Grant proportionally.

23.3. Suspension

- (a) Aboriginal Investment NT may suspend the Grantee's performance of the Project by written notice if it reasonably believes there is a serious concern relating to the Grantee, this Agreement or the Project that requires investigation. The Grantee is not entitled to the payment of any part of the Grant, during a suspension.
- (b) If Aboriginal Investment NT reasonably concludes that the concern is:
 - (ii) unsubstantiated or requires no further action, then it may direct the Grantee to recommence performing the Project; or
 - (ii) substantiated, then it may reduce the scope of this Agreement under clause 22.2 or immediately terminate the Agreement under clause 22.4.

23.4. Termination

- (a) Aboriginal Investment NT may terminate this Agreement by notice if it reasonably believes the Grantee has:
 - (ii) breached this Agreement;
 - (ii) failed to comply with a Notice to Remedy;
 - (ii) provided false or misleading statements in its Grant Application;
 - (ii) experienced or will likely imminently experience a Change in Control; or
 - (ii) become bankrupt, insolvent, entered into a scheme of arrangement with creditors or come under any form of external administration.
- (b) On receipt of a notice of termination, the Grantee agrees to take all steps to minimise loss resulting from the termination and report on and deal with the Grant as directed by Aboriginal Investment NT.

24. GST

- (a) Terms used in this clause have the same meaning where defined in *A New Tax System (Goods and Services Tax) Act 1999* (Cth).
- (b) If the Grantee makes a taxable supply to Aboriginal Investment NT and is registered for GST, then upon its receipt of a satisfactory tax invoice, Aboriginal Investment NT will pay the Grantee an amount equal to the GST on that taxable supply. This clause does not apply to any taxable supply for which the consideration is expressed to be inclusive of GST.
- (c) If GST is paid by Aboriginal Investment NT to the Grantee on account of a supply that is not a taxable supply, then on demand the Grantee must refund the amount paid to it by Aboriginal Investment NT on account of GST.

25. Subcontracting

- (a) The Grantee may subcontract part of the Project, but only if:
 - (ii) the engaged subcontractor(s) are identified in the Project Budget and are appropriately qualified, skilled and experienced to perform the subcontracted part of the Project;
 - (ii) the terms and conditions of the subcontract are in writing and not inconsistent with this Agreement; and
 - (ii) the Grantee manages the subcontractors in accordance with appropriate skill, care and diligence.
- (b) The Grantee must provide Aboriginal Investment NT with details of all subcontracts, including copies of those subcontracts, on request.
- (c) The Grantee remains liable for performing all obligations under this Agreement, despite any subcontract.

26. Personnel

- (a) The Grantee must ensure all personnel performing work in relation to the Project are appropriately qualified to perform the tasks and have the relevant skills and qualifications and clearances, including working with children clearances under the *Care and Protection of Children Act 2007* (NT) if required.
- (b) The Grantee must ensure it, its personnel and subcontractors comply with the *Work Health and Safety (National Uniform Legislation) Act 2011* (NT) and regulations made under that Act.

27. Relationship of the parties

Nothing in this Agreement renders or implies:

- (a) the relationship between Aboriginal Investment NT and the Grantee is one of a principal and contractor; nor
- (b) that the Grantee is an officer or agent of Aboriginal Investment NT,

and the Grantee must not represent itself as such.

28. Warranties

28.1. Review, legal advice etc

The Grantee warrants that it has:

- (a) read this Agreement;
- (b) had a reasonable opportunity to receive independent legal advice about the terms, conditions and effect of this Agreement; and
- (c) there have been no promises, representations or inducements to enter into this Agreement other than what is recorded in this Agreement.

28.2. Execution

By executing this Agreement on behalf of the Grantee, a person who does so warrants that they have due power and authority to do so.

28.3. Trust

If the Grantee enters this Agreement in its capacity as a trustee, then it warrants that it:

- (a) is the sole trustee of the trust;
- (b) has full and valid power to enter into this Agreement; and
- (c) has the right to be indemnified out of the assets of the trust for all liabilities it incurs under this Agreement.

29. Notices

Any notice required to be given under this Agreement must be:

- (a) in writing and addressed to the relevant party specified in Item 10 (or such other address notified from time to time); and
- (b) delivered by hand, mailed by prepaid post or emailed and will be deemed given if:
 - (ii) delivered by hand, then on delivery;
 - (ii) sent by prepaid post, then 4 Business Days after posting; and
 - (ii) emailed before 4:00pm on a Business Day, then when the email enters the recipient's server and otherwise on the next Business Day, provided no error or undeliverable message is received by the sender.

30. General

30.1. Time of the essence

In this Agreement, time is of the essence.

30.2. Survival of continuing obligations

Any obligations under this Agreement capable of operating after its expiry, termination or other determination survive and continue to remain enforceable following expiry, termination or determination.

30.3. Variation

This Agreement may only be varied by agreement in writing between the parties and in the case of Aboriginal Investment NT, to bind Aboriginal Investment NT the variation must be sent by or signed (as the case may be) its Board, Chief Executive Officer or General Manager Grants.

30.4. No waiver

No party will be taken to have waived any of its rights under this Agreement, unless the waiver is in writing and signed.

30.5. Additional documents

The parties will each execute, sign, deliver, enter into, acknowledge effect and do all such things necessary or which may be deemed proper for the purposes of carrying into effect their respective rights and obligations under this Agreement.

30.6. Exercise of rights

Any rights conferred under this Agreement are unconditional and without prejudice to any other statutory, common law or other legal rights and remedies that may be available to a party.

30.7. Costs of this Agreement

- (a) Each party will pay its own costs in respect of the preparation, negotiation, execution and exchange of this Agreement.
- (b) Where a party is required to perform an obligation under this Agreement, it must do so at its own cost, unless expressly stated to the contrary.

30.8. Severance

If any clause or part of a clause is illegal, unenforceable or invalid, then that clause or part of a clause is to be treated as removed from this Agreement with the balance of the Agreement unaffected.

30.9. Entire Agreement

This Agreement constitutes the entire agreement between the parties and supersedes all previous representations, warranties, covenants and agreements not contained and recorded in this Agreement.

30.10. Further acts

The parties will promptly do and perform all further acts and execute and deliver all further documents required by law or reasonably requested by the other party to effect the intent and purpose of this Agreement.

30.11. Counterparts and exchange

This Agreement may be executed in any number of counterparts and by the parties on separate counterparts, all of which taken together constitute one agreement. This Agreement may be exchanged electronically and for that purpose, scanned, digital and electronic signatures are acceptable.

30.12. Governing law

This Agreement is governed by the laws of the Northern Territory of Australia.

MEDIA AND CONSENT FORM

Cultural Considerations

Aboriginal Investment NT respects the knowledge, stories and images of Aboriginal and Torres Strait Islander people. This form seeks your permission to share your name, story and images (photographs, video and/or audio recordings) in a way that honours your achievements and cultural values.

Your permissions

We understand the importance of community, cultural protocols, and your right to be consulted on how your story is shared. If you choose to give permission, we will always do our best to ensure respectful representation.

Permissions	Yes / No
1. I give permission for Aboriginal Investment NT to use my name, details of how I have used my grant, and images of myself / my child or dependant for marketing and promotional purposes, including but not limited to: - Earned or paid community and public storytelling (including news articles by journalists); - Printed/radio/TV/digital publications; - Newsletters and reports; - Posters; - Websites; and - Earned or paid social media.	☒ YES ☐ NO
2. I understand that Aboriginal Investment NT will make reasonable efforts to seek my pre-approval of marketing and promotional material; however, this may not be possible or practical in some situations.	☒ YES ☐ NO
3. I understand there are some details which Aboriginal Investment NT must make public on its website, including the grant amount awarded to each grant recipient. I understand that this information has the potential to be reported in media; however, Aboriginal Investment NT will not proactively provide this information to a journalist or media.	☒ YES ☐ NO
4. I understand that Aboriginal Investment NT will store my images and a signed version of this form in its secure digital library database on an ongoing basis.	☒ YES ☐ NO
5. I understand that once I sign this form, Aboriginal Investment NT may use my details and images in accordance with my recorded permissions for up to five years. If, at any time during the five-year period, I wish to revoke my permission, I may do so in writing to Aboriginal Investment NT.	☒ YES ☐ NO
6. If I revoke my permission, I understand that every effort will be made to remove my details and images from future distribution; however, this may not be possible or practical in some situations.	☒ YES ☐ NO
7. I am interested in participating in media interviews with journalists who wish to write about my business or project for marketing and promotional purposes and give permission for Aboriginal Investment NT to put interested journalists in touch with me. I understand Aboriginal Investment NT will support me through this process.	☒ YES ☐ NO

Cultural considerations for Sorry Business

We understand that Aboriginal communities have strong cultural protocols around Sorry Business. We will always act with sensitivity and respect during Sorry Business.

If we are informed of a passing, we will consult with your family or community representatives before continuing to use any images or stories.

I have read and understood the above.

Name: Melissa Hinson

Position: CEO

Email: ceo@urapuntja.org.au

Phone: 0439 040 070

Signature: Melissa Hinson

Date: 15th October 2025

For more information or to update your records, please contact Aboriginal Investment NT's Media & Communications team at media@aboriginalinvestment.org.au.

Please also contact us if you are approached directly by journalists.

